

25STCV22667 25STCV22667

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TENTATIVE RULING

HEARING

DATE: September 15, 2026

CASE NUMBER: 25STCV22667

CASE NAME: Raymond Garcia v. City of Huntington Park

MOVING PARTY: Defendant City of Huntington
Park

OPPOSING PARTY: Plaintiff Raymond Garcia

PROCEEDING: DEMURRER

RULING SUMMARY: Defendant's demurrer to the first cause of action is overruled. Defendant's demurrer to the sixth cause of action is sustained without leave to amend.

Background

Plaintiff Raymond Garcia("Plaintiff") alleges that, beginning in or around 2022 he was subjected to discrimination, harassment, and retaliation on the basis of his physical disability and age, and for engaging in protected activity. On July 31, 2025, Plaintiff filed a Complaint, asserting causes of action against Defendant City of Huntington Park ("Defendant") for (1) Discrimination in Violation of FEHA, (2) Failure to Engage in Interactive

Process in Violation of FEHA, (3) Failure to Accommodate in Violation of FEHA, (4) Retaliation in Violation of FEHA, (5) Failure to Take All Reasonable Steps to Prevent Unlawful Discrimination and Retaliation and (6) Injunctive Relief.

Defendant demurs, pursuant to Code of Civil Procedure section 430.10(f), to the first cause of action, on the basis of uncertainty. Defendant also demurs, under subdivision (e) of the same section, to the sixth cause of action on the ground that it fails to state facts sufficient to constitute a cause of action.

Demurrer[1]

I. Legal Standard

Where pleadings are defective, a party may raise the defect by way of a demurrer. (Coyne v. Krempels (1950) 36 Cal.2d 257, 262.) A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30, subd. (a); Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) In evaluating a demurrer, the court accepts the complaint's properly pled facts as true and ignores contentions, deductions, and conclusory statements. (Daar v. Yellow Cab Co. (1976) 67 Cal.2d 695, 713; Serrano v. Priest (1971) 5 Cal.3d 584, 591.) Moreover, the court does not consider whether a plaintiff will be able to prove the allegations or the possible difficulty in making such proof. (Fisher v. San Pedro Peninsula Hospital (1989) 214 Cal.App.3d 590, 604.)

Leave

to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.)

II. Discussion

A.

First Cause of Action –

Discrimination in Violation of FEHA

Defendant contends that the first cause of action is uncertain because it combines three theories (i.e., age discrimination, disability discrimination, and retaliation) into a single count. Defendant contends that each of these theories have different elements and must be separately stated under California Rules of Court, rule 2.112. Defendant relies principally on *Skrbina v. Fleming Companies* (1996) 45 Cal. App.4th 1353 and on the rule that statutory causes of action must be pleaded with particularity.

In the Opposition, Plaintiff asserts that Government Code section 12926(o) expressly authorizes a discrimination claim based on a combination of protected characteristics, and that Defendant plainly understands the claim it must answer.

For the following reasons, the Court concludes that the first cause of action is sufficiently pleaded, and the demurrer is overruled. The controlling question on a demurrer based on uncertainty is whether the pleading is so incomprehensible that the defendant cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.) Here, that is not the case. Defendant's demurrer parses the first cause of action into its three component theories, identifies the essential elements of each by reference to the governing pattern jury instructions (CACI Nos. 2570, 2540, and 2505), and pinpoints the paragraphs supporting each theory. A defendant that can dissect a claim into its theories, state the elements of each, and match allegations to each theory necessarily comprehends the claim well enough to answer it. The complaint pleads specific facts on each theory, removal from the South East Regional Mental Evaluation Team, and replacement by younger officers (age); denial of accommodations granted to others (disability); and adverse actions following Plaintiff's complaints (protected activity), and thereby gives Defendant fair notice of the issues it must meet.

Defendant's objection is one of form – that Plaintiff has not split his FEHA claim into separately numbered counts. That objection does not support a demurrer for uncertainty. California Rules of Court, rule 2.112 requires that each "separately stated" cause of action specify its number, nature, the party asserting it, and the party against whom it is directed. Where, as here, the lack of labels does not "substantially impair" Defendant's ability

to understand the claims asserted, a demurrer based on uncertainty may not be sustained. (A.J. Fistes Corp., supra, 38 Cal.App.5th at 695-96 (citing Williams. V. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn.2).).

Moreover, Government Code section 12926(o) forecloses Defendant's premise that intertwined bases of discrimination must always be separately pleaded. The statute defines the protected bases to include "[a]ny combination of those characteristics." (Gov. Code § 12926, subd. (o)(1).) Age and physical disability are both enumerated protected bases. (Id.) The law Legislature recognizes that a plaintiff may pursue a discrimination claim predicated on a combination of protected characteristics. Skrbina does not require a different result.

Defendant's demurrer to the first cause of action is OVERRULED.

B.

Sixth Cause of Action – Injunctive Relief

Defendant demurs to the sixth cause of action on the grounds that injunctive relief is a remedy, not a standalone cause of action. Plaintiff responds that FEHA's preventive and deterrent purposes make injunctive relief an independent statutory mechanism that may be pleaded as a separate claim.

Because injunctive relief is a remedy and not a cause of action (Shell Oil v. Richter (1942) 52 Cal. App. 2d 164, 168), the Court sustains the demurrer to the sixth cause of action, with leave to amend. The gravamen of a cause of action is determined by the primary right alleged to have been violated, not by the remedy sought; because the violation of a single primary right may give rise to many forms of relief, injunctive relief is never itself the gravamen of a cause of action. (McDowell v. Watson (1997) 59 Cal.App.4th 1155, 1159.) This rule applies in the FEHA context. In an employment discrimination action alleging FEHA violations, the Court of Appeal has held that, "[w]hile denominated a cause of action' in the complaint, injunctive relief is a remedy, not a cause of action." (Ortiz v. Dameron

Hosp. Assn., (2019) 37 Cal.App.5th 568, 572, fn. 2.)

Plaintiff's assertions regarding the important preventative and deterrent purposes of injunctive relief under FEHA do not support a different result. Plaintiff has not explained why those purposes could not be served by alleging injunctive relief in the FEHA cause of action she pleaded. In amending the Complaint, Plaintiff is free to add the injunctive relief allegations to the First Cause of Action.

Conclusion

Defendant's demurrer to the first cause of action is overruled. Defendant's demurrer to the sixth cause of action is sustained with leave to amend.

Date: September 15, 2026 _____

William
E. Weinberger

Judge,
Los Angeles Superior Court

[1]
Pursuant to Code Civ. Proc. § 430.41, the meet
and confer requirement has been met.